Board Policy 2.50.020-P

Student Education Records

I. Education records are those records maintained by PPS that are directly related to a student.

II. The primary reason for the keeping and maintaining of education records for students is to help the individual student in their educational development by providing pertinent information for the student, their teachers, and their parents/guardians. These records also serve as an important source of information to assist students in seeking productive employment and/or post-high school education.

III. PPS will maintain confidential education records for students in a manner that conforms with state and federal laws and regulations.

IV. Information recorded on official education records should be carefully selected, accurate, and verifiable, and should have a direct and significant bearing upon the student's educational development.

V. PPS has an affirmative duty to provide records requested by another school district to determine a student's appropriate placement.

VI. PPS will comply with a request from parents/guardians or a student 18 years or older to inspect and review records without unnecessary delay. PPS will give parents of students with disabilities, and students 18 years or older with disabilities, an opportunity to examine all student education records in accordance with state and federal law, including all education records with respect to the identification, evaluation, and educational placement of the student and the provision of a free appropriate public education to the student.

VII. PPS will give full rights to education records to either parent, or legal guardian, unless PPS has been provided legal evidence that specifically revokes or modifies these rights. However, once the student reaches age 18, those rights transfer to the student.

VIII. A copy of this policy and related administrative directive will be made available upon request by parents/guardians, students 18 years or older or emancipated, and the general public.

Legal References: Family Educational Rights and Privacy Act, 20 U.S.C. § 1232g; 34 CFR Part 99 (2000). Assistance to States for the Education of Children with Disabilities, 34 CFR § 300.501 (2000); Individuals with Disabilities Education Act, 20 USC §§ 1400-1419; ORS 107.154; ORS 326.565; ORS 326.575; ORS 343.181; OAR 581-021-0220 to 581-021-0440.

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